

Amendment No. 1 to SB0706

Crowe
Signature of Sponsor

AMEND Senate Bill No. 706*

House Bill No. 711

by deleting all language after the enacting clause and substituting:

SECTION 1. This act is known and may be cited as the "TennCare Network Reporting Reform Act."

SECTION 2. Tennessee Code Annotated, Title 71, Chapter 5, Part 1, is amended by adding the following as a new section:

(a) As used in this section:

(1) "1115 and 1915(c) waiver programs" means a program administered by the bureau of TennCare pursuant to a federal 1115 demonstration waiver or a 1915(c) home and community-based services (HCBS) waiver that provides:

(A) A long-term service or support that is listed on the bureau of TennCare's most recently published benefit table, as may be updated or amended, for the:

- (i) CHOICES program;
- (ii) Employment and Community First CHOICES program;
- (iii) Katie Beckett program;
- (iv) Self-determination waiver program;
- (v) Statewide waiver; or
- (vi) Comprehensive aggregate cap home and community-based services program;
- (B) Occupational therapy;
- (C) Physical therapy;

- (D) Speech-language services;
- (E) Adult dental services;
- (F) Nursing services; or
- (G) Home health care;

(2) "Appointment wait time" means the number of days between the setting of a provider appointment and the date of the appointment;

(3) "Data" means aggregated and disaggregated data;

(4) "Service utilization percentage" means the number of benefit units provided to an individual with a disability divided by the number of benefit units allocated to such individual as identified in the individual's person-centered plan or waiver cap; and

(5) "Time between approval and receipt of service" means the number of days between the approval of new services in a person-centered plan and the date the delivery of such service begins.

(b)

(1) Beginning no later than June 30, 2026, and no later than each January 15 of each subsequent year, the director of TennCare, or the director's designee, shall gather, collate, and make available to the public on the TennCare website:

(A) Data relevant to the network adequacy of TennCare's 1115 and 1915(c) waiver programs;

(B) Federally required network adequacy reporting metrics;

(C) Data on service utilization percentage, appointment wait time, and time between approval and receipt of service; and

(D) Data relevant to pharmacy access for enrollees.

(2) Data and metrics required to be published pursuant to subdivision

(b)(1) must:

(A) Be delineated by service or benefit, waiver group enrollment type, county, and demographics;

(B) Use data from the previous calendar year;

(C) Be located on a publicly accessible page of the TennCare website; and

(D) Be published and available for download on such web page in a comma-separated values file format.

SECTION 3. This act takes effect upon becoming a law, the public welfare requiring it.